Haryana Vidyut Prasaran Nigam Ltd vs Haryana Electricity Regulatory ... on 3 July, 2012

COURT - I

Before the Appellate Tribunal for Electricity
(Appellate Jurisdiction)

Review Petition No. 6 of 2012 in
IA No. 134 of 2012
in
DFR No. 891 of 2011

Dated : 3rd July, 2012

Present : Hon'ble Mr. Justice M. Karpaga Vinayagam, Chairperson
Hon'ble Mr. Rakesh Nath, Technical Member

Haryana Vidyut Prasaran Nigam Ltd. ... Petitioner(s)
Versus
Haryana Electricity Regulatory Commission
Panchkula & Ors. ...Respondent(s)

Counsel for the Petitioner (s): Mr. Neeraj Kr. Jain

ORDER

We have heard the learned counsel for the petitioner. This is an Application to Review the Order passed by this Tribunal in I.A. No. 134 of 2012 dated 17.04.2012 rejecting the Application to condone the delay of 279 days in refiling the Appeal.

We have gone through the affidavit filed along with the Petition and also considered the submissions made by the learned Senior counsel for the Applicant.

The grounds on the basis of which this Petition for Review is filed cannot be considered to be the valid grounds for Review. The grounds for Appeal cannot be urged in the Review.

We do not find any apparent error on the face of the record especially when we held in the Order dated 17.04.2012 that there is no satisfactory explanation indicating the sufficient cause to condone the inordinate delay of 279 days for refiling the Appeal.

Therefore, the Review Petition is rejected.

(Rakesh Nath) (Justice M. Karpaga Vinayagam)
Technical Member Chairperson

Ts/vs